



Sealing Criminal Records or Closing Nonconviction Court Records ([N.D.C.C. Ch. 12-60.1](#))

A Research Guide for a North Dakota State Court Process

participant/case info review zone

The North Dakota Legal Self Help Center provides resources to people who represent themselves in civil matters in the North Dakota state courts.

The information provided in this research guide isn't a complete statement of the law. This information is intended as a starting point for your research into sealing North Dakota criminal records or closing North Dakota nonconviction court records using Chapter 12-60.1 of the North Dakota Century Code. The information provided in this research guide isn't intended for legal advice and can't replace the advice of a lawyer licensed to practice law in North Dakota.

The self-represented individual must make all decisions about how to proceed.

- Section One. Overview of Sealing Criminal Records and Closing Nonconviction Court Records (Pages 2-6)**
- Section Two. Legal Research Guide for Sealing Criminal Records and Closing Nonconviction Court Records (Pages 7-9)**
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No Assistance with Court Processes in Criminal Cases

The North Dakota Legal Self Help Center can give information about the court process in civil cases in North Dakota state courts to people who represent themselves.

The Center can't give assistance with court process in criminal cases and doesn't have forms, procedures, or expertise available in this area.

If you represent yourself, you conduct your own legal research, determine the appropriate procedures, and create your own legal documents. You may also retain a lawyer to help you with all or part of your legal representation.

Caution! When you represent yourself, you're held to same requirements and responsibilities as a lawyer, even if you don't understand the rules or procedures.

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Where to Find Forms

Seal Criminal Records –no forms for sealing criminal records are available through the North Dakota Legal Self Help Center.

You create your own petition and other legal documents. See Pages 10-16 for the basic process.

Close Nonconviction Court Records – the North Dakota State Court Administrator’s Office developed a petition form to request closure of nonconviction court records.

Go to <https://www.ndcourts.gov/legal-self-help>:

- Scroll to the “Criminal Matters (*no assistance available*)” section.
- Click on the “Close Nonconviction Court Records Petition” link.

Overview of Sealing North Dakota Criminal Records or Closing North Dakota Nonconviction Court Records

What is sealing criminal records?

Criminal records may either be sealed or closed under [Chapter 12-60.1 of the North Dakota Century Code \(N.D.C.C.\)](#).

If criminal records are sealed using the N.D.C.C. Chapter 12-60.1 process, records aren’t deleted or destroyed. However, the prosecution and the North Dakota court system aren’t allowed to disclose the existence or content of the criminal records.

Important! Certain criminal records reported to the North Dakota Bureau of Criminal Investigation (BCI) **can’t** be sealed. Keep reading for more information.

N.D.C.C. Chapter 12-60.1 also talks about closing nonconviction court records. What is that?

Nonconviction court records may be closed under [Section 12-60.1-05 of the North Dakota Century Code \(N.D.C.C.\)](#).

If nonconviction court records are closed using the nonconviction court records process in N.D.C.C. Section 12-60.1-05, **only court records are closed**. Prosecution records **aren’t** closed using this process.

If **nonconviction court records are closed**, only the following can get access to the closed court records in the case:

- A clerk of court;
- participant/defense attorney A judge of the court;
- The juvenile commission;
- A criminal justice agency;
- The defendant;
- The defendant's lawyer;
- The state's attorney; or
- Any person with a written order of a judge of the court.

If I wasn't convicted (found not guilty or the charges were dismissed) what should I know about closing nonconviction court records?

[N.D.C.C. Section 12-60.1-05](#) says:

If a North Dakota state district court or municipal court entered an order of nonconviction **on or after August 1, 2025**, the court closes the court record after **61 days**.

If a North Dakota state district court or municipal court entered an order of nonconviction **before August 1, 2025**, you, the Defendant, may file a petition to have the court record closed. If you, the Defendant, meet the requirements to have your case closed, the court enters an order closing the court record **within ten days of the petition being filed**.

An **order of nonconviction** is a dismissal of **all** criminal charges in a case or acquittal of **all** criminal charges in a case.

[N.D.C.C. Section 12-60.1-05](#) **doesn't apply if:**

- The dismissal was the result of a plea agreement involving a conviction on another offense;
- The case was dismissed due to a finding the individual wasn't fit to proceed under [N.D.C.C. Chapter 12.1-04](#);
- The case resulted in a verdict of not guilty due to lack of criminal responsibility under [N.D.C.C. Chapter 12.1-04.1](#); or
- The case was appealed.

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After criminal records are sealed or nonconviction court records are closed, can they be un-sealed or re-opened?

Yes, a court may order the disclosure of the sealed criminal records, or allow a person access to the nonconviction court records in the closed case.

Can I have my DUI criminal records sealed under N.D.C.C. Chapter 12-60.1?

No, DUI criminal records **can't** be sealed using the N.D.C.C. Chapter 12-60.1 process. This research guide **doesn't** include information about sealing DUI records.

To start your legal research into sealing DUI criminal records, see [N.D.C.C. Section 39-08-01.6](#).

How is sealing criminal records or closing nonconviction court records different from expunging criminal records?

In general, expungement of criminal records is deletion and destruction of all record information.

In North Dakota, expungement of criminal records is available only in limited circumstances.

See the [Expungement of Criminal Records](#) research guide for more information.

How does N.D.C.C. Chapter 12-60.1 define criminal records?

[N.D.C.C. Chapter 12-60.1](#) states that criminal records include both **court records** and **prosecution records**.

Court records include:

- Any documents or information collected, received, or maintained by court personnel in connection with a judicial proceeding;
- Any index, calendar, docket, register of actions, official record of the proceedings, order, decree, judgment, minute, and any information in a case management system created or prepared by court personnel relating to a judicial proceeding; **and**
- Information maintained by court personnel pertaining to the administration of the court or clerk of court office and not associated with a particular case.

N.D.C.C. Chapter 12-60.1 doesn't specifically define the types of records considered to be prosecution records.

However, N.D.C.C. Chapter 12-60.1 does define **Prosecutor** to mean:

- The office or agency with jurisdiction over the offense for purposes of post-conviction proceedings.

N.D.C.C. Chapter 12-60.1 states the following **aren't** criminal records:

- Criminal history record information collected by criminal justice agencies on individuals consisting of:
 - Identifiable descriptions and notations of arrests,
 - Detentions,
 - Indictments,
 - Information,
 - Other criminal charges,
 - Any dispositions arising therefrom,
 - Sentencing,
 - Correctional supervision, and
 - Release.

A **Criminal justice agency** is any government law enforcement agency or entity authorized by law to provide information regarding, or to exercise the powers of, arrest, detention, prosecution, correctional supervision, rehabilitation, or release of persons suspected in, charged with, or convicted of, a crime.

Certain criminal records reported to the North Dakota Bureau of Criminal Investigation (BCI) **can't be sealed.**

Under [N.D.C.C. Chapter 12-60.1](#), certain criminal records **can't** be sealed:

- Criminal history record information reported to the North Dakota Bureau of Criminal Investigation (BCI) **can't** be sealed, which includes:
 - Information collected by criminal justice agencies on individuals consisting of identifiable descriptions and notations of arrests, detentions, indictments, information, or other criminal charges, any dispositions arising therefrom, sentencing, correctional supervision, and release.
- Criminal justice data information maintained in the Criminal Justice Data Information Sharing System **can't** be sealed. The Criminal Justice Data Information Sharing System is part of BCI.

Who may file a Petition to have their criminal records sealed?

Under [N.D.C.C. Chapter 12-60.1](#), the following individuals may petition a North Dakota state court to seal their criminal records:

- An individual who pled guilty to or was found guilty of a **misdemeanor** offense and the individual hasn't been convicted of a new crime for at least **three years** before filing the petition; or
- An individual who pled guilty to or was found guilty of a **felony** offense and the individual hasn't been convicted of a new crime for at least **five years** before filing the petition; or
- An individual was granted an unconditional pardon of the criminal conviction by the governor.

Who **can't** file a Petition to have their criminal records sealed?

Under N.D.C.C. Chapter 12-60.1, the following **can't** petition a North Dakota state court to seal their criminal records:

- Individuals with felony offenses involving violence or intimidation during the period in which the individual (offender) is ineligible to possess a firearm under [N.D.C.C. Section 62.1-02-01\(1\)\(a\)](#):
 - Ten years after the date of conviction or the date of release from incarceration, parole, or probation, whichever is latest.
- Individuals with an offense for which the individual has been ordered to register under [N.D.C.C. Section 12.1-32-15](#):
 - Offenders against children and sexual offenders.

DUI criminal records **can't** be sealed using the N.D.C.C. Chapter 12-60.1 process. See [N.D.C.C. Section 39-08-01.6](#) for laws related to sealing DUI criminal records.

Where do I file a Petition to seal criminal records or close my nonconviction court records?

You file your petition in the existing criminal case for the offense.

Important! The existing criminal case **must** be either a North Dakota municipal court case or a North Dakota state district court case.

What does the court consider when deciding whether to grant my Petition to seal my criminal records?

When deciding whether to seal your criminal records, the court **must** consider the following:

- The nature and severity of the underlying crime that would be sealed;
- The risk you pose to society;
- The length of time since you committed the offense;
- Your rehabilitation since the offense;
- Aggravating or mitigating factors relating to the underlying crime, including factors outlined in [N.D.C.C. Section 12.1-32-04](#) (factors considered in sentencing decisions);
- Your criminal record, employment history, and community involvement;
- The recommendations of law enforcement, prosecutors, corrections officials, and those familiar with the petitioner and the offense; and
- The recommendations of victims of the offense.

If the court denies my Petition to seal my criminal records, how long do I have to wait before I can petition the court again?

If your petition to seal your criminal records is denied by the court, **you must wait one year** to file another Petition.

However, if you filed your Petition in a North Dakota municipal court, you may appeal the municipal court's denial to a North Dakota state district court.

If the court denies my Petition to seal my criminal records, can I appeal the denial?

Yes. Petitions denied by a North Dakota state district court judge or North Dakota state district court magistrate may be appealed to the North Dakota Supreme Court.

A denial by a North Dakota municipal court may be appealed to a North Dakota state district court.

- If the district court judge or magistrate **doesn't** reverse the municipal court's denial, you may appeal the district court's denial to the North Dakota Supreme Court.

Sealing Criminal Records & Closing Nonconviction Court Records Legal Research Resources

Following are legal research resources to get you started in your research into the requirements of sealing North Dakota criminal records and closing nonconviction court records under [Chapter 12-60.1 of the North Dakota Century Code \(N.D.C.C.\)](#).

North Dakota Statutes Related to Sealing Criminal Records:

(North Dakota statutes are found in the [North Dakota Century Code \(NDCC\)](#). The North Dakota Century Code contains the laws enacted by North Dakota Legislature and signed by the Governor.)

[Chapter 12-60.1](#): Sealing Criminal Records.

- See Section 12-60.1-05 for the requirements to close nonconviction court records.

[Chapter 12-60](#): Bureau of Criminal Investigation.

- See [Section 12-60-16.1](#) for records that aren't defined as criminal records under N.D.C.C. Chapter 12-60.1.

[Chapter 54-12](#): Attorney General.

- See [Section 54-12-34](#) for records that aren't defined as criminal records under N.D.C.C. Chapter 12-60.1.

[Section 39-08-01.6](#): Criminal Record - Seal - Exception.

- See Section 39-08-01.6 for laws related to sealing DUI criminal records. (DUI criminal records **can't** be sealed using the N.D.C.C. Chapter 12-60.1 process.)

North Dakota Court Rules:

([Court rules](#) govern how a dispute makes its way to court and how the dispute is conducted. All of the court rules are found online.)

At minimum, review the following:

- [North Dakota Rules of Criminal Procedure](#)
- [North Dakota Rules of Court](#)
- [North Dakota Rules of Evidence](#)

North Dakota Case Law:

(When the decision of a case is appealed from a North Dakota state district court to the North Dakota Supreme Court, the Supreme Court writes their opinion to explain how and why they interpreted the laws or rules to decide the appeal the way they did. The opinions are case law and are followed by North Dakota courts deciding later cases with similar facts and issues.)

One way to research case law is to use the print version of the North Dakota Century Code to locate the short summaries of case law after each Section. Case law summaries are located directly after the text of the Century Code Section. To view the full text of the opinion, go to ndcourts.gov, click on “Supreme Court Opinions” and enter the case name.

You may also research case law by topic at ndcourts.gov. Click on “Supreme Court Opinions”. Use the “Topic” dropdown to narrow your search by topic.

Laws constantly change through legislation, court rules, administrative rules, and court decisions.

To determine how a law or rule applies to your situation, review the applicable law or laws, court rules, administrative rules, and court decisions.

Library Resources *(Not all legal resources are available online):*

ODIN is a shared library database of many North Dakota academic, public, state agency, and special libraries. Search ODIN for resources that may be available in a North Dakota library near you. (polaris.odinlibrary.org)

If the book is available for interlibrary loan through ODIN, ask the librarian or library staff of your local North Dakota library how to request the book.

Following are a selection of library resources on ODIN that may be of interest to you:

A Short & Happy Guide to Evidence, Sydney Beckman, West Academic Publishing, 2018.

Courtroom Evidence Handbook: 2018-2019 Student Edition, Steven Goode, Olin Wellborn III, West Academic Publishing, 2018.

The Criminal Law Handbook: Know Your Rights, Survive the System, Paul Bergman, Sara Berman, NOLO, 2018.

Represent Yourself in Court: How to Prepare & Try a Winning Case, Paul Bergman, Sara Berman, NOLO, 2016.

North Dakota Century Code Annotated, Lexis Nexis, Creation Date c1959 – present.

North Dakota Court Rules Annotated, Lexis Nexis, Creation Date c1990 – present.

Other Legal Research Resources

[How to Research a Legal Problem: A Guide for Non-Lawyers](#), American Association of Law Libraries. (aallnet.org)

Basic Court Process for Sealing Criminal Records ([N.D.C.C. Chapter 12-60.1](#))

You **can't** use this process to ask a North Dakota municipal court, or a North Dakota state district court to seal your DUI criminal records. This research guide **doesn't** include information about how to seal DUI criminal records.

To start your legal research into how to seal your DUI criminal records, go to [N.D.C.C. Section 39-08-01.6](#) for laws related to sealing DUI criminal records.

See Page 17 for the basic court process to ask a North Dakota municipal court, or a North Dakota state district court to close your nonconviction court records.

Parties in a Petition to Seal Criminal Records Under N.D.C.C. Chapter 12-60.1:

Petitioner: The self-represented individual who:

1. Pled guilty to or was found guilty of a **misdemeanor** offense and the individual hasn't been convicted of a new crime for at least three years before filing the petition; **Or**
2. Pled guilty to or was found guilty of a **felony** offense and the individual hasn't been convicted of a new crime for at least five before filing the petition; **Or**
3. Was granted an unconditional pardon of the criminal conviction by the governor.

Important! The Petitioner **isn't** a self-represented individual with felony offenses involving violence or intimidation during the period in which the individual is ineligible to possess a firearm under [N.D.C.C. Section 62.1-02-01\(1\)\(a\)](#), **or** a self-represented individual with an offense for which the individual has been ordered to register under [N.D.C.C. Section 12.1-32-15](#).

Respondent: The office or agency with jurisdiction over the offense for purposes of post-conviction proceedings (Prosecuting Attorney).

- For North Dakota municipal court cases, the office of the prosecuting official for the municipality.
- For North Dakota state district court cases, the office of the States Attorney for the county where the case is filed.

Documents to Start the Petition:

In general, the following documents must be filed with the North Dakota municipal court or the North Dakota state district court:

- Petition to Seal Criminal Records Under N.D.C.C. Chapter 12-60.1;
- Proposed Order to Seal Criminal Records Under N.D.C.C. Chapter 12-60.1; **and**
 - (A proposed Order is the Order you want the judge to sign.)
- Proof of Service of the Petition and Proposed Order on the Prosecuting Attorney.

Petition Requirements:

Refer to [North Dakota Century Code Section 12-60.1-03](#) to determine the requirements of what must be included in the petition to seal criminal records under N.D.C.C. Chapter 12-60.1.

At minimum, include the following:

- Your full name and all other legal names or aliases you've used at any time.
- Your addresses from the date of the offense until the date of the Petition.
- Reasons why your Petition should be granted.
- Your criminal history in North Dakota, any other state, federal court, and foreign country, including:
 - All prior and pending criminal charges;
 - All prior and pending charges for which an imposition of sentence has been deferred or stayed, or which have been continued for dismissal; and
 - All prior requests by you with authorities in North Dakota, or another state, or federal forum for pardon, return of arrest records, expungement, or sealing of a criminal record, whether granted or not.

Proposed Order Requirements:

Refer to [North Dakota Century Code Section 12-60.1-04](#) to determine what must be included in an order of the court to seal criminal records under N.D.C.C. Chapter 12-60.1. **Your proposed order must reflect the requirements of N.D.C.C. Section 12-60.1-04.**

The court must find by clear and convincing evidence:

- You've shown good cause for the court to grant your petition.
- The benefit to you outweighs the presumption of openness of the criminal record.
- You completed all terms of imprisonment and probation for the offense.
- You paid all restitution ordered by the court for commission of the offense.
- You demonstrate reformation warranting relief.
- Your petition complies with the requirements of N.D.C.C. Chapter 12-60.1.

Important! The proposed Order must also state that the court finds the Petitioner (you) is sufficiently rehabilitated, but the Petitioner (you) is subject to the provisions of [N.D.C.C. Section 12.1-33-02.1](#) and shall release the information when an entity has a statutory obligation to conduct a criminal history background check.

The court **must** also consider the following when making the decision:

- The nature and severity of the underlying crime that would be sealed;
- The risk you pose to society;
- The length of time since you committed the offense;
- Your rehabilitation since the offense;
- Aggravating or mitigating factors relating to the underlying crime, including factors outlined in [N.D.C.C. Section 12.1-32-04](#) (factors considered in sentencing decisions);
- Your criminal record, employment history, and community involvement;
- The recommendations of law enforcement, prosecutors, corrections officials, and those familiar with the petitioner and the offense; and
- The recommendations of victims of the offense.

Serving Copies of the Completed Petition Documents:

Serving (giving) copies of the following completed documents on the Prosecuting Attorney is an important step in the Petition process:

- Petition to Seal Criminal Records Under N.D.C.C. Chapter 12-60.1; and
- Proposed Order to Seal Criminal Records Under N.D.C.C. Chapter 12-60.1

[N.D.C.C. Section 12-60.1-03](#) requires the Petition documents to be served on the Prosecuting Attorney as required by [Rule 49 of the North Dakota Rules of Criminal Procedure](#).

Rule 49 of the North Dakota Rules of Criminal Procedure requires documents to be served as required by [Rule 5\(b\) of the North Dakota Rules of Civil Procedure](#).

- For information about service under Rule 5(b) and examples of proof of service documents, review the resources in the “[Service After a District Court Civil Action Has Started](#)” section.

Proof of service of copies of the following completed documents on the Prosecuting Attorney is required:

- Petition to Seal Criminal Records Under N.D.C.C. Chapter 12-60.1; and
- Proposed Order to Seal Criminal Records Under N.D.C.C. Chapter 12-60.1

An Affidavit, or Declaration, of Service is proof of service. However, if a sheriff served the documents, a Certificate of Service is proof of service.

The Prosecuting Official Must Notify and Seek Input from a Variety of Sources:

After you arrange for the Prosecuting Attorney to be served a copy of the Petition and Proposed Order, the Prosecuting Official is required, to the extent possible, to notify and seek input from the following:

- Law enforcement;
- Witnesses;
- Victims; and
- Correctional authorities.

In general, the Prosecuting Official will notify and seek input from individuals familiar with you and the offense(s) you are petitioning the court to seal.

Filing the Original, Completed Petition Documents:

File your Petition documents with the clerk of court of the existing criminal case for the offense. Make copies of all documents for your own records.

- Petition to Seal Criminal Records Under N.D.C.C. Chapter 12-60.1;
- Proposed Order to Seal Criminal Records Under N.D.C.C. Chapter 12-60.1; **and**
- Proof of Service of the Petition and Proposed Order on the Prosecuting Attorney.

You may be required to pay a filing fee at the time of filing. Contact the clerk of court to confirm the amount, if any.

A Hearing May Not Be Held Earlier than 45 Days After the Petition was Filed:

If your Petition documents are accepted by the clerk of court for filing, **the earliest the court may hold a hearing is 45 days after the filing date.**

Important! Depending on the court's calendar, the hearing may be held much later than 45 days after the filing date.

After the hearing date is scheduled, the clerk of court may serve notice of the hearing, or you, the Petitioner, may be required to prepare and serve notice of the hearing.

Prepare Your Case:

Organize the information, documents, etc. for the hearing. Prepare an outline of your remarks and arguments.

You must prove by clear and convincing evidence that:

- You have good cause for the court to grant your Petition.
- The benefit to you outweighs the presumption of openness of the criminal record.
- You completed all terms of imprisonment and probation for the offense.
- You paid all restitution ordered by the court for commission of the offense.
- You demonstrate reformation warranting relief.
- Your petition complies with the requirements of [N.D.C.C. Chapter 12-60.1](#).

The court **must** also consider the following when making the decision:

- The nature and severity of the underlying crime that would be sealed;
- The risk you pose to society;
- The length of time since you committed the offense;
- Your rehabilitation since the offense;
- Aggravating or mitigating factors relating to the underlying crime, including factors outlined in [N.D.C.C. Section 12.1-32-04](#) (factors considered in sentencing decisions);
- Your criminal record, employment history, and community involvement;
- The recommendations of law enforcement, prosecutors, corrections officials, and those familiar with the petitioner and the offense; and
- The recommendations of victims of the offense.

The Prosecuting Attorney may challenge your evidence and present their own evidence to disprove your evidence.

Caution! Preparing a case is often a complex and confusing process. You're held to the same requirements and responsibilities as a lawyer, even if you don't understand the rules or procedures. **You need to conduct additional research to prepare.**

At minimum, review and research the laws and rules listed in this research guide. You use the North Dakota Rules of Evidence, in particular, to present your evidence and object to the Prosecuting Attorney's evidence.

See Page 9 for examples of pre-trial and trial guidebooks to help you prepare.

Attend the Hearing:

If the hearing is scheduled in person at a courthouse, either party may ask the judge for permission to attend the hearing by telephone or by some other reliable electronic means.

The judge **isn't** required to grant this type of request. The judge may require the parties to appear at the hearing in person.

The "Appear by Phone or Other Electronic Means" form set is available at ndcourts.gov/legal-self-help.

For an In-Person Hearing, Arrive Early to the Courthouse on the Date of the Hearing:

If the hearing is held in-person at the courthouse, arrive early.

If you have a serious, unavoidable reason they can't get to the courthouse on the date and time scheduled for the hearing, call the Clerk of Court **immediately**.

For a Remote Hearing, Test the Connection to the Hearing Software (Zoom):

If the hearing is held remotely, likely by Zoom, well before the hearing begins, test the connection to Zoom and your ability to function in Zoom.

Don't be late to the Zoom hearing. If you have a serious, unavoidable reason you can't attend the remote hearing on the date and time scheduled for the hearing, call the Clerk of Court **immediately**.

Conduct of the Hearing:

The judge hears both sides and then issues a final order. Sometimes, the final order is issued at the end of the hearing. Often, the final order is issued at a later date.

In general, a hearing proceeds in the following order:

- Opening Statements
 - Each party gives an opening statement. Usually, the Petitioner goes first.
- You Present Witnesses and Evidence
 - You present your case first.
 - The Prosecuting Attorney may cross-examine witnesses and object to your evidence.
- The Prosecuting Attorney Presents Witnesses and Evidence
 - The Prosecuting Attorney presents their case after you.
 - You may cross-examine witnesses and object to the Prosecuting Attorney's evidence.
- Closing Arguments
 - Each party gives a closing statement. Usually the Prosecuting Attorney goes first.

The judge decides if you proved the grounds for sealing your criminal records. If the judge decides you proved the grounds, the judge signs an order sealing the criminal records allowed to be sealed under N.D.C.C. Chapter 12-60.1.

Before You Leave the Courthouse or the Remote Hearing:

Make sure you understand what happens next. Ask if you aren't sure what, if anything, you need to do next.

Lawyer Resources

You're not required to hire a lawyer to access the state court system. If you decide to represent yourself, you must follow all of the rules, laws and procedures that a lawyer is required to follow.

If you want to find a lawyer to represent you, you may find the following options of interest.

- **The State Bar Association** provides a lawyer referral service to match paying clients in need of legal services with lawyers. The phone number is (866) 450-9579, the address is P.O. Box 2136, Bismarck, ND 58502-2136, and the website is sband.org.
- **For a list of all lawyers who are licensed to practice in North Dakota**, go to the North Dakota Supreme Court website at ndcourts.gov/Lawyers. You can narrow your search by name or location.